

25PSCV01639 25PSCV01639

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Case Number: 25PSCV01639 Hearing Date: July 27, 2026 Dept: H

Margaux Amie v. Hyundai

Motor America, et al.,

Case No. 25PSCV01639

ORDER ON MOTION

TO DISMISS

Defendant Hyundai Motor

America's Motion to Dismiss is GRANTED without prejudice.

Background

This is

a Song-Beverly Consumer Warranty Act case. Plaintiff Margaux Amie ("Plaintiff") alleges as follows: On December 5, 2022, Plaintiff purchased a used 2019 Hyundai Nexo, VIN No. KM8J84A62KU003691 ("subject vehicle"). At the time of purchase, Plaintiff was subjected to unfair sales tactics, including being pressured into buying optional protection products represented as mandatory, and had to negotiate repairs for pre-existing damage. Plaintiff was not informed, or it was not clearly disclosed, that the subject vehicle had prior history potentially including use as a rental vehicle. Plaintiff also relied on representations made regarding the ease and convenience of hydrogen fueling.

Plaintiff

alleges that the subject vehicle suffers from multiple substantial defects requiring repeated repairs and that the subject vehicle has not been repaired within a reasonable number of attempts or within a reasonable time.

On

February 23, 2026, Plaintiff filed a first amended complaint ("FAC"), asserting various causes of action against Defendants Hyundai Motor America ("Hyundai"), SC Motors Fullerton, and Does 1 through 10, including causes of action for Breach of Express Warranty (Song-Beverly Consumer Warranty Act, Cal. Civ. Code § 1790 et seq.), Breach of Implied Warranty of Merchantability (Song-Beverly, Cal. Civ. Code § 1790 et seq.; Magnuson-Moss, 15 U.S.C. § 2301 et seq.), and Fraud (Concealment and Misrepresentation).

On March 25, 2026, Hyundai demurred as to all causes of action in the FAC. The Court sustained Hyundai's Demurrer to Plaintiff's FAC without leave to amend in part as to the first and second causes of action and with leave to amend in part as to the third through seventh causes of action on May 7, 2026.

Hyundai filed the operative motion to dismiss on June 9, 2026, arguing that due to Plaintiff's failure to file a Second Amended Complaint by June 6, 2026, Plaintiff's third through seventh causes of action against Hyundai should be dismissed with prejudice. On July 7, 2026, Hyundai filed a notice of non-opposition.

At the initial hearing, Plaintiff's counsel represented a settlement had been reached; Defendant's counsel disputed this but acknowledged she was not the attorney who had handled the settlement discussions. The Court continued the hearing and ordered the counsel with knowledge of settlement discussions to appear at the continued hearing on July 16, 2026. During that hearing, Defendant's counsel confirmed that a settlement had not yet been reached but indicated that he would not object to Plaintiff filing an amended complaint so long as it was filed by July 23, 2026. The Court continued the hearing to July 27, 2026. As of this date, no amended complaint or notice of settlement has been filed. For the reasons stated herein, the motion is granted.

Legal
Standard

"The court may dismiss the complaint as to that defendant when:

(1) Except where Section

597 applies, after a demurrer to the complaint is sustained without leave to amend and either party moves for dismissal.

(2) Except where Section

597 applies, after a demurrer to the complaint is sustained with leave to amend, the plaintiff fails to amend it within the time allowed by the court and either party moves for dismissal.”

(Code Civ. Proc., § 581, subds.

(f)(1)-(2).)

Discussion

Hyundai moves for an

order dismissing Plaintiff's First Amended Complaint on the grounds that Plaintiff failed to file a Second Amended Complaint (“SAC”) following the Court's May 7, 2026 Order sustaining Hyundai's Demurrer to Plaintiff's FAC without leave to amend in part as to the first and second causes of action and with leave to amend in part as to the third through seventh causes of action. Hyundai brings this motion pursuant to Code of Civil Procedure section 581, subdivision (f)(2).

Hyundai argues that the Court should dismiss

Plaintiff's third through seventh causes of action against it due to Plaintiff's failure to file a SAC by June 6, 2026, Plaintiff has forfeited the right to file without leave from the Court, Plaintiff has “effectively admitted the claims are not well-founded,” and Plaintiff has lost her right to voluntarily dismiss her claims against Hyundai. (Mot., at pgs. 4-5.)

Second, Hyundai argues that dismissal with

prejudice is warranted because Plaintiff is unable to cure the deficiencies in her complaint as evidenced by her failure to do so in the previous versions of the complaint. (Mot., at pg. 5.) Lastly, Hyundai argues it is prejudiced by Plaintiff's non-compliance because Plaintiff's inability to state a viable claim against Hyundai had delayed this matter without a clear end in sight. (Mot., at pg. 6.)

The Court finds Hyundai's arguments persuasive. The Court sustained Hyundai's Demurrer to

Plaintiff's FAC without leave to amend in part as to the first and second causes of action and with leave to amend in part as to the third through seventh causes of action on May 7, 2026. Plaintiff gave notice of the Court's ruling on May 8, 2026. In bold in the same Order, the Court directed Plaintiff to file a second amended complaint within 30 days. The Court notes that, based on the directed timeline the last day to file the SAC fell on Saturday, June 6, 2026, Plaintiff's deadline to file moved to the next court day, Monday, June 8, 2026. (Cal. Rules of Court, rule 1.10(a).) The distinction is immaterial, however, because Plaintiff has not filed a SAC as of the date of this ruling. Plaintiff has also failed to file an opposition to this motion. Moreover, at the prior hearing, despite the fact that Defendant had already filed the instant motion, Defendant agreed to allow Plaintiff until July 23, 2026 to file an amended complaint. No amended complaint was filed by this deadline.

Accordingly, the Court GRANTS Hyundai's motion to dismiss Plaintiff's First Amended Complaint without prejudice.